TICHAONA CHUMA
versus
THE STATE

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE; 9 January 2025

Applicant in person
F.Kachidza, for the respondent

WAMAMBO: This is an application for condonation of the late noting of an appeal. The applicant appeared before me as a self actor.

The application was opposed by the respondent. After considering the application I dismissed it giving an ex tempore judgment. Applicant has requested for full reasons. The reasons follow hereunder:

The applicant was convicted of robbery as defined in Section 126 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. He was sentenced to 12 years imprisonment. Applicant averred as follows:

He delayed to note his appeal for seven years due to what he refers to as logistical challenges in accessing the record of the court.

He was already serving 46 years imprisonment when he was convicted in this case. He was initially unaware that he could note an appeal as a self actor.

He was unable to pay the fees for the transcription of the record. Applicant outlines a long explanation including the effects of Covid 19 and the challenges that accompany confinement.

On prospects of success applicant avers as follows:

He was at a "deeper end" as an unsophisticated, unrepresented accused faced with trained police officers and prosecutors.

The witnesses failed to identify him at the identification parade. He contends that the witnesses who identified him during the trial were coached. The State failed to prove that he led the police to the recovery of stolen property.

The applicant also attacked the sentenced passed. He avers among other accusations that the Trial court was emotional and used extravagant and overblown language.

It should be noted that the record is quite bulky. The above is but a summary.

The respondent is opposed to the application for the following reasons:

There was an inordinate delay of 13 years to file this application. No reasonable explanation has been given for the long delay.

The applicant has no prospects of success on appeal for he was identified by Dean, the complainant's son.

He was also implicated by his co-accused. Applicant led to the recovery of stolen items.

The court judiciously exercised its discretion in sentencing.

The filing of this application suffered a very long delay.

The explanation for the delay has no support in the form of any documentation or affidavit. The long explanation that the wife went to South Africa for greener pastures and other averments do not appear to assist the applicant. The over a decade long delay has not been explained in any reasonable manner.

The issue of the prospects of success has to be considered along with the other requirements as pointed out in *Forestry Commission* v *Moyo* 1997 (1) ZLR 254.
The need for an end to litigation is also a requirement to be considered.

The evidence against the applicant appears strong. It unfolded as follows:

The applicant at complainant's home while wielding a knife ordered Dean Mabayi to proceed to the lounge.

Applicant stabbed Pamela Mabayi with a knife on the hand. Dean Mabayi identified the applicant at an identification parade.

Pamela Mabayi also testified and implicated the applicant.

Applicant was one of the two accused who led police officers on indications leading to the recovery of a DVD player.

In a careful judgment the Trial court analysed the evidence and came to the conclusion that applicant was guilty.

In light of the factors pointed out above and the full judgment of the court which is supported by evidence on record, I find that the prospects of success on appeal against the conviction are rather dim.

It would seem that applicant is also unsatisfied by the sentence passed.

I am of the view that the sentence fits the offence, the offender and the interests of society.

The picture painted by the witness is that of a traumatic, dangerous experience of robbers pouncing upon them at their own home. There is evidence that the applicant was part of a dangerous gang, wielding weaponry and threats. One of the witnesses was stabbed on the hand.

The sentence is supported by precedent, and the ugly nature of the offence committed. I found in the circumstances that the application was unmeritorious and ordered as follows:

The application be and is hereby dismissed.

WAMAMBO J:……..

Applicant in person.
National Prosecuting Authority, respondents' legal practitioners.